

29 April 2021

Dr Rich Mclean

Sent via email to: rich@richmclean.com.au

Dear Dr Mclean

Case numbers **700088 (Media Super)**
 747026 (AustralianSuper)
 767480 (TAL Life)
 758027 (Bendigo and Adelaide Bank)
 785105 (HCF Life Insurance)

I refer to our letter of 19 March 2021 and your recent emails received on 21 April 2021.

You continue to threaten to name AFCA in a public forum

In your email you say you will “publish the entire conspiracy if I happen to die”. You also say our case manager is part of the conspiracy with Bendigo Bank and likened the complaint process as “death by stoning”.

I am concerned with the language you have used which is intimidating and again threatens to publicly publish details about our case manager and your AFCA complaint in a public forum. This behaviour will not be accepted.

You committed to treat us with respect and comply with our confidentiality requirements

On 2 March 2021, we wrote to you setting out our expectations applicable to all parties that use our service. We said we will not tolerate threats or inappropriate behaviour towards our people. We also set out our confidentiality requirements that say:

- AFCA operates on a without prejudice basis
- save for limited circumstances, the parties must maintain the confidentiality of all information provided to them through the course of the complaint.

On 15 March 2021, you agreed to treat our people with respect and comply with our confidentiality requirements by refraining from publicly disclosing your views about the events giving rise to your complaints with AFCA. You wrote:

I confirm unequivocally and hereby promise that I will not mention any names publicly and respect the processes of confidentiality required by AFCA and its independent resolution process.

We reopened your complaints and progressed them through our process because you committed to behaving appropriately.

Your email does not meet the standards you committed to

Your email is unclear as to whether you intend to publish information about our case manager or maintain confidentiality of the AFCA process. However, considering your past conduct, it is my view that the content of your email suggests you might once again engage in conduct that is not acceptable to AFCA.

AFCA takes the wellbeing of our employees very seriously. We do not accept any form of inappropriate behaviour from complainants towards our people. For the avoidance of all doubt, naming AFCA employees in an online forum falls contrary to our expectations.

Please refrain from making further intimations that you will publish information about our people or breach AFCA's privacy policy.

You must commit to AFCA's confidentiality requirements

Given your past conduct, we need your written confirmation that you will treat us with respect and comply with our confidentiality requirements. This includes not naming an AFCA employee in a public forum.

Any future threat to publish information about AFCA employees will be taken to mean you have broken your previous commitment and boundaries referenced in our previous letters to you. Accordingly, we will close our files.

What you need to do

We need your written assurance that you will comply with the confidentiality requirements we expect all parties to when using our service.

If you want AFCA to continue consideration of your open complaints listed at the start of this letter, please provide this assurance by **5 May 2021**. If we do not receive your assurance, we will close your open complaints and not consider any future complaints you may lodge with our service until the assurance is provided.

Please note that if you publish information about an AFCA employee in a public forum or breach our confidentiality requirements, your complaints will be immediately closed without warning and we will not correspond with you further.

Yours sincerely

A handwritten signature in black ink, appearing to read 'PFL' followed by a stylized circular flourish.

Peter Fisher
Senior Manager
Australian Financial Complaints Authority